

Introduction

In 2015, Europe was forced to deal with one of the largest refugee crises in modern history. Wars such as the Syrian Civil War, the Yemen Civil War, and the Libyan Civil War raged throughout the Middle East and forced millions of people to flee their home countries. With so many refugees pouring into the European Union so suddenly, the EU was forced to act quickly. To solve the issue, the European Union sought to externalize border control in an effort to limit the number of refugees. Externalizing border control would help stop refugees from ever entering the European Union by stopping them in countries outside of the EU. Therefore, the EU would never have to deal with the problem of refugees within their territory and could avoid responsibility. The main way the EU accomplished this was through the EU Turkey Migration Deal of 2016. This deal has become increasingly controversial as its legal basis has been largely criticized. While supporters argue that it has achieved its goal of limiting migration into the EU, critics argue that moral, legal, and humanitarian standards have been violated. By exploring the criticisms of the EU Turkey migration deal, its legal foundation, and underlying objectives, this paper argues that the EU Turkey migration deal is based on flawed legal framework and ultimately serves as a way for the European Union to avoid addressing the problem of refugees and migration entirely.

Turkey EU Migration Deal Context

To understand the Turkey European Union migration deal, one must understand the context behind it in more detail, and the reasons for why it is in place. From the perspective of the European Union, the most notable of these conflicts was the Syrian Civil War as the Civil War was the reason behind the 2015 Syrian refugee crisis. Due to Syria's proximity to the European Union and their impossible situation at home, many Syrian refugees fled their home country in hopes of a better life in the European Union. Many of these refugees would go into Turkey, cross the Bosphorus Strait, through Istanbul, and enter Greece on one of its islands close to Turkish territory. According to the UN Refugee Agency, "The main route shifted from the dangerous Mediterranean crossing from Libya to Italy, to what would prove to be an even deadlier crossing from Turkey to Greek islands like Lesbos" (Spindler, 2015) The idea was that once the refugees had entered Greece, Article 26 of the Treaty of the Functioning of the European Union gave all people the legal freedom to move throughout the European Union

without any border issues. However, the sheer number of refugees who were entering, overwhelmed the European Union. The UN Refugee Agency estimates “over one million refugees and migrants reach Europe by sea in 2015, with almost 4,000 feared drowned” (Clayton & Holland, 2015). Pew Research Center explains “A record 1.3 million migrants applied for asylum in the 28 member states of the European Union, Norway, and Switzerland in 2015” (Pew 2016). This was a huge difference compared to the number of migrants in 2014 that was estimated to be about 280,000 migrants, and an estimated 100,000 in 2013. (Civil Liberties Union for Europe 2015). This overwhelming number of migrants in 2015 triggered the 2015 refugee crisis as the European Union was unsure of how to respond to the situation. With most of the refugees arriving in Greece and Italy, the cohesiveness of the European Union began to be called into question as Greece and Italy felt that they were bearing an unequal amount of the burden of the refugee crisis and began calling for more equal responsibility sharing (Strik, 2016). In order to help remedy these problems, the European Union externalized the problem in the form of the EU Turkey Joint Action Plan which went into effect in October of 2015 (European Commission, 2015). In this Joint Action Plan, Turkey agreed to “strengthen the interception capacity of the Turkish Coast Guard” through upgraded surveillance equipment, increased patrol activity, and increased cooperation with EU member states (European Commission 2015) Turkey also agreed to “step up cooperation with Bulgarian and Greek authorities to prevent irregular migration across the common land borders...” (European Commission 2015). Furthermore, Turkey agreed to increase information exchange and cooperation with the EU, to strengthen the fight for the dismantling of migrant smuggling networks, and accelerate procedures that would readmit previously intercepted irregular migrants who do not need protection (European Commission 2015). On the EU’s side, the EU committed billions of euros to humanitarian organizations in order to help address humanitarian needs and assistance for Syrian refugees being held in Turkey. They also agreed to support cooperation between Turkey and the EU, support Turkey in its fight against migrant smuggling, and increase financial support offered to Turkey (European Commission 2015). Through this Joint Action Plan, the European Union achieved its goal of externalizing effective border controls. The Turkey EU Joint Action Plan was later formalized into the EU-Turkey migration deal which went into effect in March of 2016.

The Legal Concept/Framework of “Safe Third Country” in EU and International Law

While the EU Turkey migration deal is extremely similar to the Joint Action Plan, a migration deal carries more significant legal weight compared to the Joint Action Plan. Furthermore, the migration deal carries one aspect that the Joint Action Plan did not. This aspect is the designation of Turkey as a safe third country. In order to fully understand the Turkey-EU migration deal, one must first understand the context and legal framework that the deal is based on. First, one must understand the concept of non-refoulement in the context of migration. The United Nations Refugee Agency (UNHCR) defines the principle of non-refoulement as “the prohibition not to be returned to a territory where they may face prohibited treatment” (Gil Bazo, 2015). This “prohibited treatment” refers to persecution, torture, threats of death, discrimination, and other similar practices. The UNHCR uses the principle of non-refoulement as the legal basis to give states the responsibility to allow refugees to seek asylum by preventing states from deporting people to unsafe countries. For example, this means that if a North Korean person goes to Greece to seek asylum fleeing from the threat of death by the North Korean government, Greece is not legally allowed to deport the person back to North Korea as the refugee is under threat of death from the North Korean government.

Next, one must understand the concept of the “safe third country” in relation to migration. The concept of a safe third country is a widely accepted concept in both EU and international law that has been around for many decades. Article 38 of Directive 2013/32/EU of the European Parliament and of the Council defines the concept of safe third country. Article 38 states that in order for a country to be considered a safe third country, they must fulfill a set of requirements. The first requirement states “life and liberty are not threatened on account of race, religion, nationality, membership of a particular social group or political opinion”. The second requirement states “There is no risk of serious harm...”. The third requirement states that this third country must not deport a person to a country where they would be at risk of prosecution, torture, and other similar risks to their person and their freedom. While the European Parliament has a few other requirements, these three are the most important ones and the most restrictive standards that a country must meet in order to be defined as a “safe third country” by the European Union (Directive 2013).

Together, the principle of non-refoulement and principle of the safe third country serve as the legal basis for the Turkey-EU migration deal. To avoid violating the principle of

non-refoulement and the safe third country throughout the 2015 Syrian refugee crisis, a statement by the European Commission explained “People who apply for asylum in Greece will have their applications treated on a case-by-case basis, in line with EU and international law requirements and the principle of non-refoulement” (European Commission, 2016). This careful tightrope walk of political balance allowed for Greece to lean on Turkey for help on migration without giving it full safe third country status.

Criticisms of EU Turkey Migration Deal

As the EU Turkey Migration deal has aged, it has faced many criticisms. The first criticism of the EU Turkey Migration Deal lies in its legality. As explained in the previous section, the migration deal’s legality relies on the principle of non-refoulement and the principle of the safe third country. However, evaluating an application of whether or not a person will be persecuted, tortured, or threatened on a case-by-case basis does not make logical sense. First, by definition, in order to be considered a safe third country, the country can not persecute anybody on the basis of race, religion, nationality, or membership of a particular social group (European Commission, 2016). Therefore, if a country is to follow these standards, there would be no need for a case to case basis consideration of applications as no person or group would be threatened in this country. This is an inherent self-contradiction between Greece’s migration policy and its practices. Proponents of the EU Turkey migration deal would argue that Greece is not contradicting its own migration policy as Greece never claimed Turkey to be a safe third country. However, if we follow the logic that Turkey was never deemed a safe third country, then it would not make sense for Greece to deport any person or group of persons to Turkey as they may be under threat of persecution, torture, or death.

Critics of the EU Turkey migration deal claim that the Greek government and EU were putting up a facade of helping immigrants on a “unique” “case to case basis”, while in reality it is a way of Greece letting in the immigrants they want and rejecting the ones they do not. Greece’s migration policy stance asserts the idea that this is not the case. The Greek government’s stance asserts the idea that it is possible for a country to be a safe third country for some persons while not a safe third country for other persons. Although one can see how this idea is flawed, it is still worth considering and exploring how it plays out in the real world. In practicality within the context of the 2015 refugee crisis, one must consider the demographic of the roughly one million

refugees that were entering the European Union's territory, more specifically through Greece. Pew Research Center explains that roughly 30% of asylum seekers were from Syria, 15% were from Afghanistan, and 10% were from Iraq. Together, over 55%, or roughly 700,000 refugees, were from Syria, Afghanistan, or Iraq (Pew Research Center 2016). Although it is true that persons from these countries are not the same, if the Greek government truly prioritized consistency in protection, rather than adopting a case-by-case approach, the Greek government would have adopted an approach on a nation of origin basis. However, adopting a nation of origin approach to the problem of migration, may be problematic due to potentially being seen as racist. In order to avoid this, the Greek government could have adopted a policy which allowed Syrian refugees to come in, as these were the majority of refugees, and then adopted a case by case approach to those of other national origins. This would have been a respected approach as it would have helped the largest number of refugees and relied on consistent logic. If Turkey is a safe third country for one Syrian refugee, it would be a safe third country for other Syrian refugees. It is worth noting that the flaw in the EU migration policy does not necessarily lie purely in the number of refugees granted asylum. The flaw lies in the lack of consistency across cases of those from the same background and for those going to the same third country that should be considered a safe third country.

The third and most damning criticism of the EU Turkey migration deal is that there have been reports of Turkey violating human rights and restricting refugees' access to asylum despite accepting them as refugees. One example of this can be seen when looking at Syrian refugees' access to education. According to an Associate Professor at Suleyman Demirel University, a Turkish University, Syrian refugees were often not allowed in Turkish schools as administrators claimed not to be aware of laws stating that Syrians were allowed. Furthermore, when Syrian students were allowed, these classes were taught only in Turkish, making it impossible for students to keep up with the curriculum. On the surface, the Turkish government passed laws that claimed integration, but in practice real integration was not seen. Oftentimes these students would drop out of school to help support their families as Syrian refugees were often underpaid and struggled to make ends meet. (Ciger 2017). This issue was further exacerbated as several directives "asking the governorships of all provinces to... prevent Syrians from begging on the streets and to send them to camps by force" have been issued by the Turkish Ministry of the

Interior (Kivilcim 2016). After being forcefully relocated to refugee camps, refugees had to deal with a new set of problems that is arguably worse.

While on the surface, these Syrian refugee camps maintain the facade of supporting Syrian refugees, these camps often had internal problems that violated human rights. Ciger, the associate professor at Suleyman Demirel University, cites NGO reports when explaining “the intermediaries for the ‘marketing’ of Syrian women and very young girls are easily found around the camps as well as on social media” (Ciger 2017). Ciger also writes “Prosecutors are inactive and refrain from investigating the widespread crimes of the marketing of Syrian women and girls” (Ciger 2017). The fact that Syrian women and young girls are marketed and exploited for and forced into sexual labor speaks to the inhumane conditions that refugees were held in. Furthermore, the Turkish government’s tolerance of such disgusting human rights abuses and violations shows the Turkish government’s apathy towards the wellbeing of Syrian refugees. From the actions of the Turkish government, it becomes obvious that Turkey can not possibly be considered to be a safe third country which calls into question the entire legal basis of the EU Turkey migration deal. This problem becomes even more clear when examining reports of hundreds of Syrian refugees being deported back to Syria. According to the Human Rights Watch Organization, “Turkish authorities arbitrarily arrested, detained, and deported hundreds of Syrian refugee men and boys to Syria between February and July 2022” (Human Rights Watch 2022). These reports show that not only should Turkey not be considered a safe third country due to the lack of human rights protection, but its practices by definition directly violate the principle of non-refoulement. Due to this, not only should Turkey not be considered a safe third country, but the violation of the principle of non-refoulement shows that refugees should not be sent to Turkey as they are at risk of human rights violation and being deported back to the exact situation they are seeking asylum from.

Conclusion

While it is true that the EU Turkey migration deal has effectively reduced the number of refugees and migrants entering the European Union, it violates EU law and creates a facade of being beneficial to refugees while in practice undermining refugees’ human rights and endangering their wellbeing by deporting them to the very situation they fled. The Turkey EU migration deal violates the principle of non-refoulement therefore undermining the principle of

safe third country which is the legal basis of the migration deal. Supporters of the deal argue that technically Greece did not violate EU law since they did not officially designate Turkey as a safe third country. However, their argument would be disproven by Joint Ministerial Decision 42799/2021 which declares Turkey as a safe third country for the nationalities of Syrian, Afghan, Somali, Pakistani, and Bangladeshi nationals (European Parliament 2021). This contradiction shows that the true objective of the deal was never to actually help the refugees, but rather to serve Greece and the EU's interests of externalizing border control. Some of the consequences of this faulty legal basis can be seen when considering the dangerous precedent that the migration deal has set. As of May 2025, the EU has also created similar migration deals with countries like Libya, Tunisia, and Egypt with the goal of limiting migration into Europe. Considering this perspective, the EU Turkey migration deal was effective in limiting migration during the refugee crisis, but has come at the cost of legal and moral standards while simultaneously setting a precedent for legally tenuous migration deals in the future.

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